

DEPARTMENT OF VETERANS AFFAIRS

Justification and Approval (J&A) For Other Than Full and Open Competition (>SAT)

Acquisition Plan Action ID: 36C244-25-AP-1637

1. **Contracting Activity:** Department of Veterans Affairs, VISN 4, Corporal Michael J. Crescenzo VA Medical Center located at 3900 Woodland Avenue, Philadelphia PA 19104. Purchase request number: 642-25-2-315-0067
2. **Nature and/or Description of the Action Being Processed:** Corporal Michael J. Crescenzo VA Medical Center has a new requirement for the Stryker Mako robotic arm system that would allow for an expansion of the joint replacement program. The Mako robotic arm supports implants on the Strategic Acquisition Center contract schedule that can be ordered by ordering officers at the Philadelphia VA. Robotic programs particularly in surgery have seen a noticeable trend over the last decade and is expected to continue growing in the coming years. Advancements in robotic systems such as the Stryker Mako have evolved in terms of precision, reliability, and integration with imaging technologies. Robotic assisted surgeries are increasingly associated with improved clinical outcomes. Studies suggest benefits like fewer complications, more accurate implant placements, reduced blood loss, shorter hospital stays, and quicker recovery times. There is a growing patient demand for minimally invasive surgery due to less postoperative pain, quicker recovery, and minimal scarring. Mako robotics allow for better operational efficiency.
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** This system will be used to assist the surgeon with the use of a computer guided robotic arm in the performance of both total hip replacement and cemented and non-cemented total knee replacement. The proprietary Stryker Mako Robotic Arm System has been FDA approved for the use of both cemented and uncemented applications. This technology will enhance the quality, precision, and safety of total knee and total hip replacement procedures presently being completed at the facility for the Veterans we serve. The robot assists the orthopedic surgeon in detailing a plan of execution as to where the incision in the joint is to be made and ensures the exact placement of where the joint replacement should go.

Total Estimated dollar value of the requirement is: [REDACTED]

4. **Statutory Authority Permitting Other than Full and Open Competition:**
 - (X) (1) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements per 41 USC §3304(a)(1) as implemented by FAR 6.302-1;
 - () (2) Unusual and Compelling Urgency per 41 USC §3304(a)(2) as implemented by FAR 6.302-2;
 - () (3) Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services per 41 USC §3304(a)(3) as implemented by FAR 6.302-3;
 - () (4) International Agreement per 41 USC §3304(a)(4) as implemented by FAR 6.302-4
 - () (5) Authorized or Required by Statute per 41 USC §3304(a)(5) as implemented by FAR 6.302-5;
 - () (6) National Security per 41 USC §3304(a)(6) as implemented by FAR 6.302-6;

() (7) Public Interest per 41 USC §3304(a)(7) as implemented by FAR 6.302-7;

5. Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):

The Mako surgical robotic system is the only system that can provide robotic assistance in the performance of both total hip and total knee replacement. The computer-assisted total joint arthroplasty has been shown to improve prosthetic alignment in total hip and total knee replacement. The Mako surgical robot is the only semi active system. The computer directs the surgeon, but the surgeon ultimately decides how to proceed. The Mako robotic arm will guide the surgeon to precise bone cuts in total knee replacement. The surgeon utilizes a saw attached to a robotic arm. The robotic arm will have a defined area of resection based on the preoperative CT scan performed. These unique qualifications will minimize the potential for soft tissue injury such as neurovascular injury, ligamentous injury, or tendon injury. The robotic arm will not allow the surgeon to make cuts beyond the defined area of resection established by the preoperative CT scan.

The Mako robotic arm is the only system approved for both cemented and non-cemented total, knee replacement, The use of non-cemented components is especially beneficial for the younger and more active patient.

The Mako system is utilized as a semi active system for total knee replacement, partial knee replacement, and total hip replacement. The system will guide the surgeon in performing bone cuts in total knee replacement, partial knee replacement, and in acetabular reaming in total hip replacement. The Mako system provides direct surgeon assistance in the placement of the acetabular component by directing the surgeon through the use of a robotic arm in reaming of the acetabulum. The ideal placement of the acetabular cup is determined by the preoperative CT scan and allows for placement of the acetabular cup to reduce the potential for dislocation, that optimizes the leg length, and minimize the potential for impingement of the femur on the acetabulum. The size of the acetabular cup can be determined from the preoperative CT scan, reaming of the acetabulum is minimized, typically in a traditional hip replacement without the use of computer navigation, the acetabulum is enlarged progressively by 1-2mm increments until the ideal size is obtained, usually based on the size of the femoral head measured at the time of surgery. With the Mako system, the size of the acetabular cup is determined preoperatively and a single reaming is performed with the predetermined acetabular size based on the pre operative CT scan. This will significantly reduce operation time. The placement of the acetabular cup is directed by the robotic arm, the Mako system allows for the precise placement of the acetabular cup determined by preoperative planning. This will reduce the incidence of cup malposition and associated complications including post operative dislocation, premature polyethylene wear, leg length discrepancy, and impingement.

6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:

A notice of intent to sole source 36C24425Q0314 was posted on March 4, 2025 and closed March 7, 2025 with only one response from Howmedics Osteonics Corp., Stryker Corporation.

Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:

The anticipated cost will be considered fair and reasonable through a comparison of previously award contracts for surgical robots and the government estimate. The purchase of a Mako surgical Robot in fiscal year 2023 is the same amount as the estimate and pricing recently obtained in the committed amount of \$1,299,750.00.

7. Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:

Howmedics Osteonics Corp., dba Stryker Corp. is the OEM and does not have any authorized distributors of the required Mako surgical robotic system. The Mako surgical system is manufactured in the United States. No other responses were received and no other sources are known that are capable of providing the brand name Stryker – Mako Robotic System.

The VIP database was queried on 03/05/2025 using the NAICS Code, 339113 and keyword “Mako Surgical Robot”. The NAICS Code and keyword search returned over six hundred possibilities, no additional results matched the key words. Searched National Acquisition Center (CCST), MedSurg Catalog Search GSA Advantage, GSA eLibrary, FPDS, USA Spending and SBA, and SBA Veteran Certification database. A search of FPDS was queried on March 5, 2025 using keywords “Mako Robotic System” indicate that Howmedica Osteonics Corp., dba Stryker Corp., (OEM)(Large business) received all awards for Mako Robotic Systems. No agency or government wide contract exists.

A previous Notice of Intent to Sole Source 36C24423Q1062 was posted on Contract Opportunities on 07/21/2023 thru 07/31/2023 with only one response from the Styker Corporation. During the market research phase multiple resources were utilized to see if the Stryker MAKO robotic arm could be located on GSA Advantage, FDPS, and open market searches. Results reviewed indicated only Howmedica Osteonics Corp, dba Stryker Corp was awarded the contract on the Open Market in September 2023 and a sole source justification was approved for contract 36C24423P0864.

8. Any Other Facts Supporting the Use of Other than Full and Open Competition: None

9. Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:

Howmedics Osteonics Corp., dba Stryker Corp.
2555 Davie Road
Fort Lauderdale, FL 33317

10. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:

The Philadelphia VA continues to review new robotic technologies in the market place. When a new technology is identified, the Philadelphia VA will consider other options to overcome any barriers on future procurements.

11. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



Program Analyst, Surgical Services
VA Philadelphia Healthcare

12. **Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP:](#)**

- a. **Contracting Officer Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

ANDREW TAYLOR

Digitally signed by ANDREW
TAYLOR
Date: 2025.03.10 10:58:40 -04'00'

Andrew Taylor
Contracting Officer
NCO4

- b. **One Level Above the Contracting Officer (Required over SAT but not exceeding \$750K):** I certify the justification meets requirements for other than full and open competition.



NCO4 Branch Chief, Commodities 2

- c. **VHA RPO HCA Review and Approval:** I have reviewed the foregoing justification and find it to be complete and accurate to the best of my knowledge and belief and recommend approval (if over \$75 million) or approve (\$750K to \$75 million) for other than full and open competition.



Executive Director, Regional Procurement Office East
VHA Head of Contracting Activity (HCA)